

Subject: Re: Rule 12 Appeal – Judicial Records Request Denials – Kathryn Copeland
Date: Wednesday, June 4, 2025 at 8:54:48 PM Central Daylight Time
From: Katie Copeland
To: Rule12Clerk
Attachments: image001.jpg

Thank you. Can you please advise me on how to report ADA violations or request investigation? I have several documents that illustrate how misinformed the judiciary seems to be when it comes to compliance with ADA.

Sincerely,
Katie Copeland
817-789-8498

From: Rule12Clerk <Rule12Clerk@txcourts.gov>
Date: Tuesday, May 27, 2025 at 5:05 PM
To: Katie Copeland <kcopelandlaw@gmail.com>
Cc: Rule12Clerk <Rule12Clerk@txcourts.gov>
Subject: RE: Rule 12 Appeal – Judicial Records Request Denials – Kathryn Copeland

Ms. Copeland,
The appeal initiated in the below email is currently under review. You may find a copy of prior Rule 12 opinions in PDF form at the following link: <https://www.txcourts.gov/open-records-policy/>.
Regards,
Rule 12 Clerk

From: Katie Copeland <kcopelandlaw@gmail.com>
Sent: Saturday, May 24, 2025 12:24 AM
To: Megan LaVoie <Megan.LaVoie@txcourts.gov>
Cc: Rule12Clerk <Rule12Clerk@txcourts.gov>
Subject: Re: Rule 12 Appeal – Judicial Records Request Denials – Kathryn Copeland
Importance: High

CAUTION: This email originated from outside of the Texas Judicial Branch email system.

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Dear Ms. LaVoie,

In conjunction with the Rule 12 Petitions for Review – No. 25-008 and No. 25-009, I need to add another concerning David L. Evans, Presiding Judge of the Eighth Administrative Judicial Region. I've cc'd the clerk to request that this email and the attached materials be added to the above files.

I also respectfully request **expedited review**, as my children are experiencing ongoing medical neglect due to their father's refusal to follow medical recommendations and my inability to get them help because of certain void orders in place. Most recently, my younger daughter was diagnosed with scarlet fever *again* due to untreated strep throat (a recurring issue), and my older daughter has gone more than 18 months without eating disorder treatment. Her height z-score is now between -2.0 and -2.4, meeting the WHO definition of severely stunted growth. These are not abstract harms—these are life-altering consequences for children who had once been thriving.

I was a family law attorney before managing my older daughter's Emmy award-winning acting career. But everything unraveled after an **ex parte order was entered on May 26, 2022**—an order that barred her from acting and led to **13 months of separation from me**. Judge Nevarez extended that void order indefinitely and was ultimately disqualified from my case. Since then, I've been navigating a system that seems either unwilling or unable to follow the most basic procedural requirements.

On **March 25, 2025**, I sent a Rule 12 request to the office of Judge Evans. On Friday, **May 9, 2025**, I received a certified letter from Judge Evans (attached) stating that my requests were denied "because they do not request judicial records. See Rule 12.2(d) Texas Rules of Judicial Administration..." Alternatively, he states that he is denying my request overbroad and burdensome, referencing Rule 12 Decision 17-001.

I believe this response does not make "specific, non-conclusory findings that compliance with the request would substantially and unreasonably impede the routine operation of the court or judicial agency." I also believe these denials are incorrect because I myself have such a record in the form of the attached email from his office to me on April 18, 2024. On April 17, 2024, I had gone to the Family Law Courthouse with an Application for Protective Order and an affidavit in support of ex parte relief. However, when I arrived, **none of the judges would allow me to present it to them**. I was told they had "marching orders" not to allow it. I was completely shocked and reached out to Judge Evans.

I reached out to the office of Judge David Evans for a few reasons: (1) because a court coordinator suggested I ask him what to do, (2) because he was the Judge who had disqualified Judge Nevarez and appointed Judge Wells, and (3) because his daughter was my college roommate for years and he attended the same church as me and my daughters - so I believed he would *also* be shocked by what the judges had done in refusing to follow procedure. Unfortunately, the next day, April 18, 2024, I received an email from Judge Evans's office (attached) that essentially told me to wait until Judge Wells returned from vacation—even though my daughter and I were facing imminent harm that weekend. **This cannot be how we treat vulnerable parents seeking protection.**

My concern is not just personal. In front of the Texas Supreme Court right now there is a Petition for Writ of Mandamus and a Supplement (Cause No. 25-0325) that **I filed two days ago** that shows indisputably that the orders in place separating me and my children are

void as a matter of law because the court lost plenary power on January 27, 2024. That means that my enforcement and motion to transfer the case to Dallas County will also be found to be void. I'm terrified that when I regain custody, I will be right back under the same judges who allowed all of this to happen. And so will my daughters. I have asked the Texas Supreme Court to "direct any remand to a neutral district court or appoint a special master to ensure procedural fairness and meaningful enforcement" of their judgment "due to the pattern of jurisdictional overreach and constitutional violations in the 231st District Court."

I respectfully request that your office consider whether the denials I've received are legally valid, and whether **there is any mechanism to investigate courts or counties when clear violations of Texans' rights are occurring—especially in family law.** If such a process exists, I would be grateful to initiate it.

In previous correspondence, you referenced that I may find a copy of Rule 12 with all the committee opinions at <http://www.txcourts.gov/open-records-policy.aspx>. However, I am not able to access anything. Could you please provide me another link or copy of the documents?

Given that I am a Texas litigant with disabilities who was **denied ADA accommodations** and protective relief, I hope this will prompt further discussion within the Office of Court Administration about how to better investigate or oversee these patterns in Texas. I am happy to contribute to that conversation or endeavor. The transcripts in my case regarding a court's duty to provide accommodations will likely astonish and upset you.

If there is **anything further I can provide**, please don't hesitate to ask. I sincerely appreciate your time and your role in preserving transparency and accountability in our courts. I would like to be part of the solution, if possible.

Sincerely,
Katie Copeland
817-789-8498

Bonus information: As background, I also want to highlight the **Arizona Joint Legislative Ad Hoc Committee on Family Court Orders**, which held a hearing on 5/12/25 on systemic failures in family law and included testimony from a Texas family. One of the most compelling statements came from Senator Mark Finchem, who said:

There's a reason that the constitution, in fact, ladies and gentlemen, we're going to have a little constitution question here. Article 1 is the legislature. It is first for a reason... it's closest to the people. Article 2, the executive, it's supposed to do what the legislature tells it to do – execute. Article 3, the judiciary. They're there to call balls and strikes. Did you break the law? Did not break the Law?

This notion of three co-equal branches of government is a progressive era falsity. It is a fiction. So for the legislature to bow down to another branch of government. Your point is well taken, sir. That is not our job. Our job is to represent the interests of the people and in this regard the interest of children. Especially because who else are they gonna turn to?

Senator Mark Finchem, Co-Chair of the Arizona Joint Legislative Ad Hoc Committee on Family Court Orders.

Here is the video from that hearing:

 [Arizona Ad Hoc Committee Hearing \(May 12, 2025\)](#) — My favorite part is around 2:32:00.

From: Katie Copeland <kcopelandlaw@gmail.com>

Date: Thursday, March 27, 2025 at 11:54 PM

To: megan.lavoie@txcourts.gov <megan.lavoie@txcourts.gov>

Subject: Rule 12 Appeal – Judicial Records Request Denials – Kathryn Copeland

Ms. LaVoie,

Please see the attached Petition for Review regarding Rule 12 Requests.

Thank you,

Katie Copeland
817-789-8498

